

3. 10:00 AM CASE NUMBER: MSC21-02258

CASE NAME: THOMAS VS. ECKERT

ISSUE CONFERENCE

FILED BY:

TENTATIVE RULING:

As between Plaintiff Thomas and Defendant Eckert, parties to appear.

Law & Motion

4. 9:00 AM CASE NUMBER: C23-01524

CASE NAME: DENNIS BULLARD VS. APTIVE ENVIRONMENTAL, LLC

***HEARING ON MOTION IN RE: FINAL APPROVAL OF SETTLEMENT**

FILED BY:

TENTATIVE RULING:

Plaintiffs Dennis Bullard and Kory Thornton move for final approval of their class action and PAGA settlement with defendant Aptive Environmental, LLC. The Court granted preliminary approval on April 9, 2026.

A. Background and Settlement Terms

The original complaint was filed by Plaintiff Bullard on June 21, 2023, in Contra Costa County, raising PAGA claims on behalf of non-exempt employees, alleging that defendant violated the Labor Code in various ways, including failure to pay minimum and overtime wages, failure to provide meal breaks, failure to provide proper wage statements, failure to reimburse necessary business expenses, and failure to pay all wages due on separation. Coordination Plaintiff Kory Thornton filed a similar complaint in Sacramento County. Coordination procedures began in December 2024. A Second Amended Complaint with both plaintiffs together was filed on August 3, 2026, following the grant of preliminary approval.

The settlement would create a gross settlement fund of \$3,750,000. The class representative payment to plaintiff would be \$10,000. Counsel's attorney's fees would be \$1,312,500 (35% of the settlement). Litigation costs are \$25,675.54. The settlement administrator (Phoenix) would cap its costs at \$21,500. PAGA penalties would be \$200,000, resulting in a payment of \$175,000 to the LWDA. The fund is non-reversionary. The net settlement amount for the class would therefore be \$2,170,324.46, resulting in an average payment of \$705.06 to participating class members.

The proposed settlement would certify a class of all current and former non-exempt employees of Aptive employed within the State of California from June 21, 2019, to October 1, 2025. (Settlement, Par. 1.5, 1.12.) The class is estimated at 3,068 members, although three have since opted out.

The settlement contains release language covering any claims "all claims . . . or causes of action . . . arising out of the claims that were alleged, or reasonably could have been alleged, based on the Class Period facts stated in the Actions and ascertained in the course of the Actions." (Settlement,

Par. 5.2.)

Informal discovery was undertaken prior to mediation. The matter settled after extensive arms-length negotiations, with included a mediation session with an experienced mediator.

Looking back at the preliminary approval documentation, Counsel estimated the maximum PAGA exposure at \$2,935,200. The class claims had a maximum exposure of approximately \$21,343,307.98. There were risks for both of these claims, including the presence of arbitration agreements, recordation issues, general proof issues relating to off-the-clock and rest and meal break claims, and inherent risk. Counsel reported a realistic damages analysis after risk analysis of \$3,466,039.46.

The LWDA was notified of the settlement.

Since the Court granted preliminary approval, notice was successfully sent to all 3,068 class members. No objections have been received. Three individuals requested to opt out of the class action.

B. Legal Standards

The primary determination to be made is whether the proposed settlement is “fair, reasonable, and adequate,” under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including “the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement.”

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Recently, the Court of Appeal’s decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the “fair, reasonable, and adequate” standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess “the fairness of the settlement’s allocation of civil penalties between the affected aggrieved employees[.]” (*Id.*, at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, “[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter.” (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

C. Attorney fees, costs, and representative payment

Plaintiffs seek 35% of the total settlement amount as fees, relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a

lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Id.*, at 505.)

Counsel have provided an estimate of their lodestar fee. They estimate that they have expended 1,116.7 hours to date, at blended rates of \$650 and \$850 per hour. This results in a lodestar of \$892,450, yielding an implied multiplier of 1.47. All counsel are experienced, and the blended hourly rates are reasonable. The number of hours expended is substantial for a case that had no discovery, but the court does note that there were initially two actions, so there may have been an initial duplication of work. Moreover, there was quite a bit of motion practice in 2024, including an appeal that was pending at the time of settlement.

The Court agrees that the lodestar cross check “does not override the trial court’s primary determination of the fee as a percentage of the common fund and thus does not impose an absolute maximum or minimum on the potential fee award.” (*Lafitte, supra*, 1 Cal.5th at 505.) But the Court has a fiduciary duty to the class, and in some cases that duty requires that the fee be reduced.

A number of issues must be considered here. First, the fees were contingent on prevailing, and accordingly, some adjustment for the risk of loss is appropriate. As to preclusion of other employment, the hours expended here were substantial. Another consideration is the result obtained. Counsel characterizes it as an “outstanding” result, but does not give comparisons. The issue is whether there is anything about this case that justifies a higher than usual fee. The court is not aware of anything in particular about this case that was exceptionally complex, aside from what was discussed above. Counsel have conducted calculations that demonstrate reasonable damages expectations slightly below the recovery (before fees). Overall, while the Court does not believe that a 35% contingency fee is appropriate in most cases that settle prior to discovery and dispositive motions, after consideration of all of the factors before it, the Court will approve that fee here.

The litigation costs are reasonable and are approved.

As to the requested representative payment of \$10,000, Mr. Bullard attests that he participated in the litigation, took the risk of liability for costs, and that his participation could hurt his chances of being hired by other employers. He estimates his time spent at 40 to 45 hours. He also provided a general release, although he does not indicate that he had any other claims with value. Mr. Thornton attests similarly, although he does not estimate his hours spent on this litigation. Based on the criteria for evaluation of such requests set forth in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807 (particularly the size of the award relative to the recovery), the Court approves payments of \$7,500 each. The remainder reverts to the class.

D. Discussion and Conclusion

The moving papers sufficiently establish that the proposed settlement is fair, reasonable, and adequate to justify final approval.

The motion is granted, with the change in representative payments as indicated. Counsel are directed to prepare an order reflecting this tentative ruling, and the other findings in the previously submitted proposed order and a separate judgment. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented, the date for which should be obtained through consultation with the Department clerk. Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date. 5% of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

5. 9:00 AM CASE NUMBER: C23-02357
CASE NAME: LISA ROSS VS. CHENETTE CARTER
***HEARING ON MOTION IN RE: 2ND AMENDED COMPLAINT**
FILED BY:
TENTATIVE RULING:

Before the Court is Plaintiff Lisa Ross' Motion for Leave to File Second Amended Complaint ("Motion").

Procedural Background

Plaintiff Lisa Ross filed her initial complaint on September 21, 2023. The operative First Amended Complaint was filed on December 15, 2023.

On February 10, 2026, Defendant Charlie Ross filed a Motion for Summary Judgment. On February 18, 2026, Plaintiff filed an ex parte application for leave to file a Second Amended Complaint ("SAC"). The Court **denied** the ex parte application on February 19. The Order, entered on February 20, stated: "Plaintiff may request leave to file S.A.C. as part of opposition to defendant's motion for summary judgment set for hearing on 3/12/26."

Plaintiff filed her Opposition to Defendant's MSJ on March 10, 2026. In her Opposition, Plaintiff argues that she should be permitted to file a Second Amended Complaint.

No trial date has been set for this matter. A Case Management Conference is scheduled to occur on the same date as the hearing on this motion.

Standard

Code of Civil Procedure section 473(a)(1) provides the Court discretion to permit a party to amend its pleadings. There is "a policy of great liberality in permitting amendments to the complaint at any stage of the proceedings, up to and including trial [citations]..." (*Magpali v. Farmers Group* (1996) 48 Cal.App.4th 471, 487.) Leave to amend can be denied where there is "'inexcusable delay and probable prejudice to the opposing party'... [Citation.]" (*Ibid.*)

"[I]t is a rare case in which 'a court will be justified in refusing a party leave to amend his pleadings so that he may properly present his case.'" (*Morgan v. Superior Court of Los Angeles County* (1959) 172 Cal.App.2d 527, 530 quoting *Guidery v. Green* (1892) 95 Cal. 630, 633.) "Generally, leave to amend must be liberally granted [Citation], provided there is no statute of limitations concern, nor any